

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rosemary Espinal	Team: Team # 2	CCRB Case #: 201008562	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 06/23/2010 8:00 PM	Location of Incident: Putnam Avenue and Knickerbocker Avenue	18 Mo. SOL 12/23/2011	Precinct: 83
Date/Time CV Reported Wed, 06/23/2010 10:48 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 06/23/2010 10:48 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Desmond Brown	28136	938123	083 PCT
2. POM Derek Almeida	25236	946426	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Derek Almeida	Force: PO Derek Almeida hit § 87(2)(b)'s head against the ground	A . Complaint Withdrawn
B . POM Desmond Brown	Force: PO Desmond Brown used physical force against § 87(2)(b)	B . Complaint Withdrawn

Case Summary

§ 87(2)(b) called the CCRB on June 23, 2010 and filed the following complaint through the Call Processing System on behalf of her son, § 87(2)(b). § 87(2)(b) also filed the same complaint at the Internal Affairs Bureau (IAB log # 10-31946). On June 23, 2010 at approximately 8:00 p.m., § 87(2)(b) § 87(2)(b) his cousin and a friend (names unknown) were at a park located at Putnam Avenue and Knickerbocker Avenue in Brooklyn. § 87(2)(b) § 87(2)(b)'s friends and cousin informed § 87(2)(b) that uniformed police Officers Desmond Brown and Derek Almeida approached and questioned § 87(2)(b) § 87(2)(b) § 87(2)(b) attempted to run away from the officers and allegedly swallowed marijuana. The officers subsequently arrested him for § 87(2)(b). PO Almeida allegedly slammed § 87(2)(b) § 87(2)(b)'s head against the ground as he was handcuffed (**Allegation A**) PO Brown allegedly twisted § 87(2)(b) § 87(2)(b)'s arm (**Allegation B**). § 87(2)(b) § 87(2)(b) received scratches on his knees. He was transported to the 83rd Precinct where Emergency Medical Services arrived and removed him to § 87(2)(b) for marijuana poisoning.

On June 28, 2009, the undersigned investigator contacted § 87(2)(b) § 87(2)(b) by phone and left a message requesting a call back. The same day, the undersigned mailed a first call letter to § 87(2)(b) § 87(2)(b) and the letter was not returned to the CCRB. On June 30, 2010, § 87(2)(b) § 87(2)(b) called and stated she wanted to withdraw her complaint § 87(2)(b) § 87(2)(b).

The same day, § 87(2)(b) § 87(2)(b) called and decided to withdraw his complaint. Both § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) confirmed that no one from the NYPD or the CCRB coerced them to withdraw their complaint. The same day, the undersigned mailed withdrawal letters to § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) which will be included in the case file when received. Team 2 Supervisor Jessica Peña reviewed § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b)'s withdrawal statements and confirmed that they adhered to agency standards. It is therefore recommended that this case be closed as complaint withdrawn.

Team: _____

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Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

